

UNIVERSITY OF ILLINOIS
AT URBANA - CHAMPAIGN

University Library

Office of Dean of Libraries
and University Librarian
230 Main Library, MC-522
1408 West Gregory Drive
Urbana, IL 61801



October 17, 2016

United States Copyright Office
Library of Congress
101 Independence Avenue, Southeast
Washington, DC 20559-6000

To Whom It May Concern,

This letter is provided in response to the September 27, 2016 notice of inquiry for further comment on the Section 1201 Study. Specifically, the University Library of the University of Illinois at Urbana-Champaign wishes to comment on the proposal for a new permanent exemption for assistive technologies for use by persons who are blind, visually impaired, or print disabled.

The University Library, one of the largest research libraries in North America, holds nearly 14 million print volumes and 24 million items and materials in all formats, languages, and subjects, including 9 million microforms, 120,000 serials, 148,000 audio-recordings, over 930,000 audiovisual materials, over 280,000 electronic books, 12,000 films, and 650,000 maps.

The University Library has a strong commitment to providing services to individuals with disabilities. Many of these item in the University Library collection would, without some sort of technological assistance involving read aloud or screen reading technology, be inaccessible to individuals who are unable to read text in its originally produced format.

The inclusion of a permanent exemption for assistive technologies for use by persons who are blind, visually impaired, or print disabled will better enable the University Library to provide services to all patrons, including those who need to disable

technological barriers to access in order to use a “read aloud” function or a “screen reader” or other “assistive technologies.”¹

As has been noted in many of the comments by academic libraries provided to date, the University Library cannot utilize the “Library Exemption” to the DCMA for this purpose. Thus, such an exception is crucial to permit librarians to assist disabled patrons.

Additionally, as noted in the recent WIPO Study on Copyright Limitations and Exceptions for the Visually Impaired, such a permanent exception to the DCMA would put the United States law in the company of 57 other nations whose laws include such an exception.²

The permanent exemption would permit library patrons and librarians assisting them to avoid the confusing process of applying for a new exemption every three years as currently required in the DCMA provisions. Furthermore, it would permit academic libraries to better comply with the Americans with Disabilities Act requirement to provide auxiliary aids to accommodate disabled patrons.³

We sincerely hope that this exemption will be made permanent and that our response to the call for comments has been helpful. Please do not hesitate to contact us if you have any additional questions.

¹ Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 80 FR 65944, 65950 (Oct. 28, 2015).

² Judith Sullivan, WIPO Standing Committee on Copyright and Related Rights, *Study on Copyright Limitations and Exceptions for the Visually Impaired* (2016), available at http://www.wipo.int/edocs/mdocs/copyright/en/sccr_15/sccr_15_7.pdf.

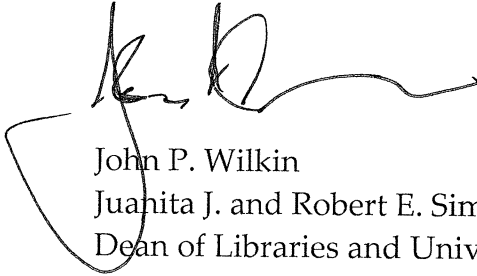
³ 42 U.S.C. 12182 (2012).

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October 17, 2016

Sincerely,

A handwritten signature in black ink, appearing to read "John P. Wilkin". The signature is stylized with a large, sweeping initial "J" and "W".

John P. Wilkin

Juanita J. and Robert E. Simpson

Dean of Libraries and University Librarian

A handwritten signature in black ink, appearing to read "Sara R. Benson". The signature is written in a cursive style.

Sara R. Benson

Copyright Librarian and Assistant Professor